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Amending Acts

1. Ayurveda Medical Council (First Amendment) Act, 2054 2054.10.27
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.01.07
3. Some Nepal Laws Amendment, Integration, Adjustment and Repeal Act, 2074 2074.06.30

Act Number 21 of the year 2054

An Act Made to Provide for Matters Relating to the Ayurveda Medical Council

Preamble: Whereas, to make the Ayurveda medical system more effective to maintain the health and convenience of the general public, to develop the system of production and use of Ayurvedic medicines, and to provide for the registration of Ayurvedic practitioners, it is expedient to establish an Ayurveda Medical Council;

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. Chapter 1

Preliminary

1.1 Short Title and Commencement:

1.1.1. This Act may be called the "Ayurveda Medical Council Act, 2054". 1.1.2. This Act shall commence on such date as the Government of Nepal may appoint by notification in the Nepal Gazette. 1.2 Definitions:

1.2.1 Unless the subject or context otherwise requires, in this Act,-

1.2.1.1 "Council" means the Ayurveda Medical Council established pursuant to section 2.1. 1.2.1.2 "Chairperson" means the Chairperson of the Council. 1.2.1.3 "Member" means a member of the Council and said word shall also include the Chairperson. 1.2.1.4 "Registrar" means the Registrar of the Council appointed pursuant to section 3.1. 1.2.1.5 "Register" means the register maintained for registering the names of practitioners under this Act. 1.2.1.6 "Practitioner" means a person who has obtained the minimum qualification referred to in section 4.2 in Ayurvedic science omitted by the First Amendment. and is engaged in the profession related thereto. 1.2.1.7 "Registered Practitioner" means a practitioner whose name is registered in the Register pursuant to section 4.5. 1.2.1.8 "Ayurvedic Medicine" means medicine prepared according to the Ayurveda system. 1.2.1.9 "Rules" means the rules made under this Act. 1.2.1.10 "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules or regulations made under this Act. Chapter 2

Establishment and Management of the Council

2.1 Establishment of the Council: An Ayurveda Medical Council is hereby established for the smooth

operation of the Ayurveda medical system, the development of the system of production and use of Ayurvedic medicines, and the registration of the names of practitioners. 2.2 Council to be an Autonomous Body:

2.2.1 The Council shall be an autonomous and corporate body with perpetual succession. 2.2.2 The Council shall have its own separate seal for all its acts and proceedings. 2.2.3 The Council may, like an individual, acquire, use, sell or otherwise dispose of movable and immovable property.

2.2.4 The Council may, like an individual, file or defend suits and legal proceedings, and suits and legal proceedings may be filed against the Council in the same name. 2.3 Constitution of the Council: 2.3.1 The Council established pursuant to section 2.1 shall consist of the following members:- 2.3.1.1 A practitioner nominated by the Government of Nepal - Chairperson 2.3.1.2 Three practitioners nominated by the Government of Nepal from amongst practitioners - Members 2.3.1.3 The Director, Department of Ayurveda - Member 2.3.1.4 Three practitioners elected by registered practitioners from amongst themselves as prescribed - Members 2.3.1.5 One Principal nominated by the Government of Nepal from amongst the Principals of Ayurveda campuses - Member 2.3.2 If the Government of Nepal deems necessary, it may, after consulting the Council, by notification in the Nepal Gazette, increase, decrease or change the members of the Council. 2.3.2a Added by the First Amendment. While making nominations of members pursuant to sub-section 2.3.1.2, it shall be done from amongst practitioners who have obtained the qualifications as per sub-sections 4.2.1.1, 4.2.1.2, and 4.2.1.3. 2.3.2b Added by the First Amendment. Until the members pursuant to sub-section 2.3.1.4 are elected, the Government of Nepal shall nominate three members from amongst practitioners. 2.3.2c Added by the First Amendment. While nominating a member from amongst the Principals pursuant to sub-section 2.3.1.5, it shall be done from amongst registered practitioners. 2.3.3 If the Council deems necessary, it may invite any officer of the Government of Nepal or omitted by the First Amendment. any other expert to attend the meeting of the Council as an observer. 2.3.4 The term of office of the members of the Council shall be four years. After the expiry of the term, they may be renominated or re-elected. 2.3.5 If the office of any member falls vacant before the expiry of the term, another member shall be nominated or elected for the remaining period. 2.3.6 Omitted by the First Amendment. 2.4 Duties, Functions, and Powers of the Council: 2.4.1 The duties, functions and powers of the Council shall be as follows:- 2.4.1.1 To make necessary arrangements for strengthening the system of treating diseases through the Ayurveda medical system and smoothly operating Ayurvedic medicine. 2.4.1.2 To make necessary arrangements for developing the system of using Ayurvedic medicines. 2.4.1.3 To determine the qualifications of practitioners and make arrangements for registering the names of practitioners who meet the qualifications. 2.4.1.4 To advise the Government of Nepal regarding the production, sale and distribution of Ayurvedic medicines.

2.4.1.5 To make suggestions to the Government of Nepal for making necessary arrangements regarding Ayurveda research. 2.4.1.6 To make suggestions to the concerned bodies regarding the standard of Ayurveda education. 2.4.1.7 To grant recognition, as prescribed, to teaching institutions established in Nepal omitted by the First Amendment. and other institutions established for similar purposes that teach or provide training in subjects related to Ayurveda. 2.4.1.8 To determine the curriculum, admission requirements, examination system policy, and other necessary minimum infrastructure for teaching institutions established in Nepal omitted by the First Amendment. and other institutions established for such purpose that teach or provide training in subjects related to Ayurveda, and to evaluate and review matters related thereto. 2.4.1.9 To grant recognition, as prescribed, to educational qualifications and degrees awarded in Ayurveda and modern medicine and surgery and medical auxiliary subjects. 2.4.1.10 To determine necessary policies for the smooth operation of the Ayurveda medical profession. 2.4.1.11 To prepare a code of conduct for

practitioners as prescribed, and to take action as prescribed against practitioners violating such code of conduct and remove their names from the Register. 2.5 Disqualification for Membership: 2.5.1 The following persons shall be disqualified for being elected, nominated, or continuing as a member of the Council:- 2.5.1.1 A person whose name has been removed from the Register, 2.5.1.2 A non-Nepali citizen, 2.5.1.3 A person who has been adjudged insolvent for being unable to pay debts, 2.5.1.4 A person who has been convicted by a court of a criminal offense involving moral turpitude and sentenced, or 2.5.1.5 A person of unsound mind. 2.6 Circumstances for Termination of Membership: 2.6.1 The membership of the Council shall be deemed to have terminated in the following circumstances:- 2.6.1.1 If disqualified to remain a member pursuant to section 2.5, 2.6.1.2 If resignation from the office of member is accepted, 2.6.1.3 Upon death, or 2.6.1.4 If absent from more than three consecutive meetings of the Council without giving notice with cause to the Council. 2.7 Meetings and Decisions of the Council: 2.7.1 Meetings of the Council shall be held as determined by the Chairperson. 2.7.2 Meetings of the Council shall ordinarily be held three times a year, and the Chairperson may call additional meetings if deemed necessary.

2.7.3 The meeting of the Council shall be presided over by the Chairperson, and in his/her absence, a person chosen by the members from amongst themselves shall preside over the meeting. 2.7.4 If fifty percent of the total number of members of the Council are present, the quorum for a meeting of the Council shall be considered complete. 2.7.5 The opinion of the majority shall prevail in a meeting of the Council, and in case of a tie, the person presiding over the meeting shall have a casting vote. 2.7.6 The decisions of the Council shall be certified by the Registrar. 2.7.7 The allowances and other facilities payable to members for participating in meetings shall be as prescribed. 2.7.8 The Council may determine other procedures to be followed in its meetings. 2.8 Delegation of Powers: The Council may, as necessary, delegate its powers to the Chairperson, a member, or a committee or sub-committee of members as prescribed. 2.9 Acts and Proceedings not to be Invalidated: If it is subsequently discovered that any provision of this Act regarding the appointment of a member has not been complied with, the acts and proceedings done by such member prior to such discovery shall not be invalidated solely by that fact. Chapter 3 Provisions Relating to Employees 3.1 Registrar: 3.1.1 The Government of Nepal shall appoint a Registrar to carry out the administrative work of the Council. 3.1.2 The Registrar shall act as the Secretary of the Council. 3.1.3 The service, terms and facilities of the Registrar shall be as prescribed. 3.1.4 In the absence of the Registrar, the Government of Nepal may designate any other officer-level employee of the Council to carry out all the work to be done by the Registrar. 3.2 Duties, Functions and Powers of the Registrar: 3.2.1 The duties, functions and powers of the Registrar shall be as follows:- 3.2.1.1 To submit applications received for registration to the Inquiry Committee formed pursuant to sub-section 4.4.1 for necessary action. 3.2.1.2 Subject to this Act and Rules, to register in the Register the name, address and qualification of practitioners whose names are to be registered from time to time in accordance with the decision of the Council, and to issue certificates of registration.

3.2.1.3 To remove from the Register the name of any registered practitioner who has died, or of practitioners whose names the Council has decided should be removed from the Register pursuant to this Act and Rules. 3.2.1.4 Upon receiving information that any registered practitioner has left the profession or changed address pursuant to section 4.6, to make a note accordingly in the Register. 3.2.2 Other duties, functions and powers of the Registrar shall be as prescribed. 3.3 Employees of the Council: 3.3.1 The Council may appoint as many employees as necessary. 3.3.2 Employees appointed pursuant to sub-section 3.3.1 shall be under the supervision and control of the Registrar. 3.3.3 The service, terms and facilities of the employees of the Council shall be as prescribed. Chapter 4 Provisions Relating to Registration of Practitioners' Names 4.1 Application for Registration in the Register: 4.1.1 A practitioner wishing to practice the Ayurveda medical profession shall, subject to this Act and Rules, submit an application to the Council as prescribed for

registration of his/her name in the Register. 4.1.2 A practitioner submitting an application pursuant to sub-section 4.1.1 shall pay the fee as prescribed for registration of his/her name in the Register. 4.1.3 Practitioners already engaged in the Ayurveda medical profession at the time of commencement of this Act shall, within six months from the date of commencement of this Act, submit an application pursuant to sub-section 4.1.1 for registration of their names in the Register. 4.2 Qualifications of Practitioners: 4.2.1 For the purpose of registering the names of practitioners under this Act, the following qualifications are prescribed:- 4.2.1.1 Passed Ayurvedacharya or Vaidyaratna or Bachelor of Ayurveda or equivalent in Ayurvedic science from a recognized teaching institution. 4.2.1.2 Obtained a postgraduate degree in Ayurvedic science after a bachelor's degree in another medical system. 4.2.1.3 Obtained a postgraduate degree in Ayurveda and modern medicine and surgery from a recognized teaching institution. 4.3 Documents, Details and Information to be Attached with the Application: 4.3.1 A practitioner applying for registration pursuant to section 4.1 shall attach the following proofs, details and information with the application:- 4.3.1.1 Certificate or recommendation letter relating to his/her qualification, 4.3.1.2 If the name is registered in the registers of any foreign Ayurveda Medical Council or equivalent body, a statement specifying the qualification or degree registered in such register and the registration number, 4.3.1.3 An affidavit as prescribed stating that he/she will work subject to this Act and Rules.

4.4 Action on Application:

4.4.1 Amended by the First Amendment. The Council may form an Inquiry Committee to investigate and submit a report on applications received pursuant to section 4.1. 4.4.2 The Inquiry Committee shall investigate whether the applicant practitioner is a qualified practitioner and whether his/her application is made in due form, and shall submit a report to the Council within fifteen days. 4.4.3 The Council may, after considering the report of the Inquiry Committee submitted pursuant to sub-section 4.4.2, decide as follows:-

4.4.3.1 Decide to register the name of the qualified practitioner who has submitted an application in due form in the Register, and order the Registrar to register it,

4.4.3.2 Order the Registrar not to register the name of the person who submitted an application not in due form, and to inform the applicant of the reason for non-registration. 4.4.4 If a practitioner whose name could not be registered in the Register pursuant to sub-section 4.4.3.2 submits another application after fulfilling the required formalities, his/her name shall not be refused registration solely on the ground that it could not be registered previously. 4.5 Certificate of Registration: If the Council decides to register the name of any applicant practitioner pursuant to sub-section 4.4.3.1 and orders the Registrar accordingly, the Registrar shall register the name of such practitioner in the Register and, omitted by the First Amendment. issue a certificate of registration as prescribed. 4.6 Notification on Leaving Profession or Change of Address: If any registered practitioner leaves his/her profession or changes address, such practitioner shall, within one month of leaving the profession or changing address, notify the Registrar as prescribed. 4.7 Provision for Removal of Name and Re-registration:

4.7.1 The Council may order the removal of the name of any registered practitioner from the Register in any of the following circumstances:-

4.7.1.1 If convicted by a court of a criminal offense involving moral turpitude, or

4.7.1.2 If determined by a two-thirds majority of the Council that he/she has failed to observe the prescribed conduct relating to the profession, or

4.7.1.3 If of unsound mind. 4.7.2 If a practitioner whose name has been removed from the Register pursuant to sub-section 4.7.1 submits an application for re-registration stating reasonable cause, the Council may, if it deems fit to re-register his/her name, order the Registrar to register the name. 4.7.3 Upon receiving an order pursuant to sub-section 4.7.2, the Registrar shall collect the prescribed fee and re-register the name of such

practitioner in the Register and issue a certificate.

4.8 Cancellation of Certificate: If it comes to the notice that the name of any person has been registered in the Register by fraud or mistake, and upon investigation such fact is found to be true, the Council may confiscate the certificate of registration of such person and cancel the registration.

Chapter 5 Ayurveda Medical Profession

5.1 Unregistered Practitioners Not Allowed to Practice: 5.1.1 After the commencement of this Act, no person other than a registered practitioner shall practice the Ayurveda medical profession, directly or indirectly. Added by the First Amendment. 5.1.1a Notwithstanding anything contained in sub-section 5.1.1 above, persons who do not have the minimum qualification for registration with the Council but have obtained the educational qualification of Ayurveda Shastri or Vaidyabhushan, Certificate in Ayurveda or equivalent, Assistant Ayurveda Worker or equivalent in Ayurvedic science, and who wish to practice the medical profession independently, or technicians of the Ayurveda group serving the Government of Nepal, may practice the Ayurveda medical profession by getting registered in the register of a sub-committee formed by the Council. Added by the First Amendment. 5.1.1b In the case of a person who has reached the age of 50 years and has obtained a recommendation from the concerned District Office stating that he/she has been involved in Ayurvedic medicine for three generations and gained experience, such person may, within one year from the date of commencement of this Act, practice the medical profession after obtaining permission according to a separate arrangement as prescribed by the Council. Amended by the First Amendment. 5.1.2 Notwithstanding anything contained in sub-section 5.1.1, the business of producing or selling or distributing Ayurvedic medicines as prescribed shall be as prescribed.

5.2 Right to Issue Certificates and Prescriptions: 5.2.1 A registered practitioner shall have the right to certify and issue certificates for the following matters:- 5.2.1.1 Issuing certified copies of birth and death certificates. 5.2.1.2 Signing or issuing certificates relating to Ayurvedic medical treatment or physical or mental fitness. Amended by the First Amendment. 5.2.2 The provision relating to giving prescriptions for prescribed Ayurvedic medicines shall be as prescribed.

Chapter 6 Production and Sale-distribution of Ayurvedic Medicines

6.1 Approval Required to Produce Ayurvedic Medicines: 6.1.1 For producing specified types of Ayurvedic medicines prescribed by the Government of Nepal by notification in the Nepal Gazette after consulting the Council, prior approval of the Department of Ayurveda shall be required.

6.1.2 A person wishing to produce Ayurvedic medicines prescribed pursuant to sub-section 6.1.1 shall submit an application to the Department of Ayurveda as prescribed for approval. 6.1.3 Upon receiving an application pursuant to sub-section 6.1.2, the Department of Ayurveda shall make necessary inquiries and, if deemed necessary, after consulting the Council, may grant approval as prescribed, subject to the condition that if the applicant is not a registered practitioner, he/she shall produce Ayurvedic medicines under the supervision and control of a registered practitioner. 6.1.4 Other provisions relating to the production of Ayurvedic medicines shall be as prescribed.

6.2 Sale of Ayurvedic Medicines without Prescription Prohibited: Specified types of medicines prescribed by the Government of Nepal by notification in the Nepal Gazette after consulting the Council shall not be sold or distributed without a prescription from a registered practitioner.

Chapter 7 Fund and Audit

7.1 Fund of the Council: 7.1.1 The Fund of the Council shall consist of the following amounts:- 7.1.1.1 Amounts received from the Government of Nepal, 7.1.1.2 Amounts received from registration fees of practitioners, and 7.1.1.3 Amounts received from other sources. 7.1.2 The operation of the Fund of the Council shall be as prescribed. 7.2 Accounts and Audit: 7.2.1 Accounts of income and expenditure of the Fund shall be maintained as prescribed. 7.2.2 The audit of the Fund shall be carried out as prescribed. 7.2.3 The Government of Nepal may, at any time, inspect or cause to be inspected the accounts and related documents of the Fund if it so desires.

Chapter 8 Recognition of Educational Qualifications

8.1 Recognition by the Council: Amended by the First Amendment. 8.1.1 The Council shall grant recognition, as

prescribed, to certificates of educational qualifications or other degrees related to the Ayurveda profession for the purpose of registration with the Council. Amended by the First Amendment. 8.1.2 The certificates of educational qualifications or degrees recognized pursuant to sub-section 8.1.1 shall be published in the Nepal Gazette. Added by the First Amendment. 8.1a. May Call for Details: The Council may, from time to time, call for details from teaching institutions that grant certificates of educational qualifications or other degrees recognized pursuant to sub-section 8.1.1, regarding the curriculum determined for such certificates or other degrees and the conditions determined for admission, for the purpose of evaluation, and it shall be the duty of such institution to provide the details. Added by the First Amendment. 8.1b.

Inspection of Examinations: The Council may appoint and send inspectors to inspect examinations conducted by the concerned teaching institutions for certificates of educational qualifications or other degrees recognized pursuant to sub-section 8.1.1. An inspector appointed in this manner shall submit a report to the Council specifying the details prescribed by the Council regarding the examinations inspected by him/her. Provided that the inspector shall not interfere in any manner in such examinations. Added by the First Amendment. 8.1c. Withdrawal of Recognition: 8.1c.1 If, upon consideration of the details received pursuant to section 8.1a and the report submitted pursuant to section 8.1b, it appears that the curriculum, admission requirements, and examination method determined by the concerned teaching institution for certificates of educational qualifications or degrees recognized pursuant to sub-section 8.1.1 are not appropriate and sufficient, the Council shall submit its report to the Government of Nepal in that regard. 8.1c.2 After receiving the report of the Council pursuant to sub-section 8.1c.1, the Government of Nepal may, if deemed necessary, call for an explanation from the concerned teaching institution, and after considering the explanation if received, and if any further investigation is required, after making necessary investigation, the Government of Nepal may, by notification in the Nepal Gazette, withdraw the recognition of the certificate of educational qualification or other degree related to Ayurveda awarded by such teaching institution after a specified date. Chapter 9 Miscellaneous 9.1 Protection of Acts Done in Good Faith: Neither the Council nor the Registrar shall be liable for any act or proceeding done in good faith under this Act or Rules. 9.2 Dissolution of the Council: 9.2.1 If it appears to the Government of Nepal that the Council has failed to exercise the powers conferred upon it, or has abused its powers, or has exercised powers beyond those conferred, or has failed to perform duties required to be performed by the Council under this Act and Rules, the Government of Nepal may dissolve the Council. 9.2.2 After the dissolution of the Council pursuant to sub-section 9.2.1, until another Council is constituted, the Government of Nepal may itself perform or cause to be performed by forming a committee all the acts required to be done by the Council under this Act and Rules. 9.2.3 After the dissolution of the Council pursuant to sub-section 9.2.1, the Government of Nepal shall keep the Fund and other properties of the Council under its own management, and after another Council is constituted, shall hand over such Fund and properties to the said Council.

9.2.4 The Government of Nepal shall ordinarily constitute another Council pursuant to section 2.3 within three months of the dissolution of the Council pursuant to sub-section 9.2.1. 9.3 Penalties: 9.3.1 A person engaging in the Ayurveda medical profession contrary to section 5.1 shall be liable to Amended by the Some Nepal Laws Amendment, Integration, Adjustment and Repeal Act, 2074. imprisonment for up to three years and a fine of up to thirty thousand rupees. 9.3.2 A registered practitioner who misuses the right pursuant to section 5.2 shall be liable to a fine of up to two thousand rupees or imprisonment for up to two months or both. 9.3.3 A person producing Ayurvedic medicines without the approval of the Department of Ayurveda pursuant to section 6.1 shall be liable to a fine of up to three thousand rupees or imprisonment for up to six months or both. 9.3.4 A person selling or distributing Ayurvedic medicines contrary to section 6.2 shall be liable to Amended by the First Amendment. imprisonment for up to one year and a fine of up to ten thousand rupees.

9.3.5 A person doing any act contrary to this Act or Rules, other than those mentioned in this section, shall be liable to a fine of up to two thousand rupees. Added by the First Amendment. 9a. Authority for Investigation and Prosecution: The authority or body for investigation and prosecution of offenses under sections 5.1 and 5.2, and the procedure relating thereto, shall be as prescribed by the Government of Nepal by notification in the Nepal Gazette. 9.4 For the implementation of the objectives of this Act, the Council may make necessary Rules, and such Rules shall come into effect only after approval by the Government of Nepal. 9.5 Power to Make Regulations: The Council may, for the conduct of its day-to-day business, subject to this Act and Rules, make Regulations with the approval of the Government of Nepal.